

# Amrit Lal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 May 2022 · Writ - C No. 872 of 2022 · **Disposed without merits; liberty to file Para 6.8 objection.**

## HEADNOTE

The Allahabad High Court disposed of the writ without expressing any opinion on the merits of a recovery citation dated 16 March 2020 for Rs. 4,94,949. The petitioner was given liberty to file an objection before respondent no. 4 under Para 6.8 of the U.P. Electricity Supply Code, 2005, within four weeks, to be decided within the next four weeks by a reasoned and speaking order after a hearing.

## FACTUAL SUMMARY

Amrit Lal approached the Allahabad High Court in Writ-C No. 872 of 2022 against the State of Uttar Pradesh and four others. He asked for certiorari quashing a recovery citation dated 16 March 2020 issued by respondent no. 3, and for a mandamus restraining recovery of Rs. 4,94,949 under that citation. Counsel for respondent nos. 4 and 5 stated that an objection could be submitted before respondent no. 4 and would be decided by a speaking and reasoned order after the petitioner was heard.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.8

Objection under Para 6.8 against a recovery citation

#### HOLDING

Without expressing any opinion on the merits, the writ is disposed of with liberty to the petitioner to file, within four weeks, an objection before respondent no. 4 under Para 6.8 of the U.P. Electricity Supply Code, 2005, together with a certified copy of the order. If filed within that period, respondent no. 4 shall decide the objection within the next four weeks in accordance with law by a reasoned and speaking order after affording a reasonable opportunity of hearing. ¶ 1

## PRINCIPLE TAGS

**para-6.8-objection-alternate-remedy** The challenge to the recovery citation was not decided on merits. The writ was disposed by relegating the petitioner to an objection under Para 6.8 before respondent no. 4. ¶ 1

**fresh-objection-under-clause-6.8** The petitioner was allowed four weeks to file a fresh objection under Para 6.8, and respondent no. 4 was directed to decide it within the following four weeks by a reasoned speaking order after hearing. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 16 MARCH 2020 AND THE DEMAND OF RS. 4,94,949 ARE SUSTAINABLE

The Court expressly declined to express any opinion on the merits and left the objection to respondent no. 4. ¶ 1